

THOMAS, J., concurring

most fervently when the precedent at issue is least defensible. See, e.g., *Holder*, *supra*, at 944–945 (opinion of THOMAS, J.) (“*Stare decisis* should not bind the Court to an interpretation of the Voting Rights Act that was based on a flawed method of statutory construction from its inception” and that has created “an irreconcilable conflict” between the Act and the Equal Protection Clause and requires “methodically carving the country into racially designated electoral districts”). It is no secret that *stare decisis* has had a “ratchet-like effect,” cementing certain grievous departures from the law into the Court’s jurisprudence. Goldberg, *supra*, at 96. Perhaps the most egregious example of this illegitimate use of *stare decisis* can be found in our “substantive due process” jurisprudence. *McDonald v. Chicago*, 561 U. S. 742, 811 (2010) (THOMAS, J., concurring in part and concurring in judgment). The Court does not seriously defend the “legal fiction” of substantive due process as consistent with the original understanding of the Due Process Clause. *Ibid.* And as I have explained before, “this fiction is a particularly dangerous one” because it “lack[s] a guiding principle to distinguish ‘fundamental’ rights that warrant protection from nonfundamental rights that do not.” *Ibid.* Unfortunately, the Court has doggedly adhered to these erroneous substantive-due-process precedents again and again, often to disastrous ends. See, e.g., *Stenberg v. Carhart*, 530 U. S. 914, 982 (2000) (THOMAS, J., dissenting) (“The standard set forth in the *Casey* plurality has no historical or doctrinal pedigree” and “is the product of its authors’ own philosophical views about abortion” with “no origins in or relationship to the Constitution”). Likewise, the Court refuses to reexamine its jurisprudence about the Privileges or Immunities Clause, thereby relegating a “‘clause in the constitution’” “‘to be without effect.’” *McDonald*, *supra*, at 813 (quoting *Marbury*, 1 Cranch, at 174); see *Timbs v. Indiana*, 586 U. S. 146, 157–159 (2019) (THOMAS, J., concurring in judgment) (criticizing the Court’s incorporation doctrine through a clause that